

	Foundation Health Plan, Inc.	OFF-CALENDAR. (See 6/29/26 Minute Order [vacating hearing for both motions after the filing of a Notice of Settlement of Entire Case].)
11	Oei vs. Abinante	<u>Demurrer</u> <u>Motion to Strike</u> 1. <u>Demurrer</u> The court OVERRULES in part, and SUSTAINS in part, Defendant MATTHEW ABINANTE's ("Abinante") demurrer to the third, fourth, fifth, seventh, and ninth causes of action of the Complaint filed by Plaintiff KEVIN OEI. (Code Civ. Proc., § 430.10(e), (f).) Specifically, the general demurrer to the fourth cause of action is SUSTAINED with 30 days leave to amend and the demurrer to the remaining causes of action are OVERRULED. The court GRANTS 30 days leave to amend. The Complaint asserts the following causes of action: (1) breach of contract (2) common count: goods and services rendered (3) unjust enrichment; (4) conversion; (5) accounting; (6) involuntary dissolution (7) removal of director; (8) enforcement of inspection rights; and (9) violation of Penal Code, § 496 The first, second, and sixth causes of action are asserted against ASCADA HEALTH PC ("Ascada") only. The ninth cause of action is asserted against Defendant MATTHEW ABINANTE ("Abinante") only. The remaining causes of action (i.e., the third, fourth, fifth, seventh and eighth causes of action) are asserted against both named defendants, Ascada and Abinante. <i>3rd C/A (unjust enrichment)</i> By way of the third cause of action for unjust enrichment, Plaintiff appears to seek disgorgement of monetary